

When a claim is submitted to arbitration, and an arbitration award is issued, a party can either petition the court to confirm the award as a judgment under C.C.P. §1285, or petition the court to vacate the award under C.C.P. §1286.2.

Thus, for multiple reasons, WEBB-POSEY's filing of a cross-complaint is improper, and is hereby stricken in its entirety, without leave to amend.

Parties are to appear for the Case Management Conference set for the same date and time as hearing on this motion. The court intends to set a hearing date for the cross-petitions filed as to confirmation or vacating of the arbitration award.

HORACE FLOYD vs. ERIC TAGGESELL; ET AL.
Case No. CU25-10956

Plaintiff's Motion to Sever Cross-Complaint

TENTATIVE RULING

THE PARTIES ARE TO APPEAR AS SET FORTH BELOW.

Plaintiff HORACE FLOYD moves to sever the cross-complaint of Defendants and Cross-Complainants ERIC TAGGESELL and RCA CALIFORNIA LLC from his complaint in this action. Defendants seek contribution and indemnity from Cross-Defendant ROMERO'S LANDSCAPING regarding Plaintiff's alleged harms from falling into an uncovered trench on Defendants' property.

The court, in furtherance of convenience or to avoid prejudice, may order separate trial of causes of action, including those asserted in a cross-complaint. (Code Civ. Proc., § 1048, subd. (b).) A person against whom a complaint is brought may file a cross-complaint asserting any causes of action that person possesses against the complainant and/or any causes of action that person possesses against other parties that arise out of the same transactions or occurrences as the complaint. (Code Civ. Proc., § 428.10.)

Defendants' indemnity action against ROMERO'S arises out of the same transactions or occurrences as Plaintiff's complaint. The court does not find that severance would further convenience or avoid prejudice. Simultaneous trial of the actions promotes judicial economy as the facts determining Defendants' liability, if any, to Plaintiff will bear on ROMERO'S liability, if any, to Defendants. The court recognizes Plaintiff's statements that he is severely ill and again suggests that Plaintiff refile his motion for trial preference when appropriate supporting medical evidence is available.

Plaintiff's motion for severance is denied.
